

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES — PROBATE DIVISION

Stanley Mosk Courthouse • 111 North Hill Street, Los Angeles, CA 90012

In the Matter of the Conservatorship of the Person of: YOLANDA REYES, <i>Proposed Conservatee.</i>	Case No. 25STPB09876 ORDER APPOINTING TEMPORARY CONSERVATOR OF THE PERSON (Prob. Code §§ 2250, 2250.2, 2250.4, 2250.6) Hearing Date: November 10, 2025 Time: 8:30 a.m. Department: 9 (Probate) Judicial Officer: Hon. Beatrice N. Halloway, Judge of the Superior Court
--	---

APPEARANCES

Petitioner **Marisela Reyes**, sister of the proposed conservatee, appeared personally and through counsel, Elias G. Portilla, Esq. (SBN 218774), of Portilla & Yee, LLP, 700 South Flower Street, Suite 1900, Los Angeles, CA 90017.

The proposed conservatee, **Yolanda Reyes**, did not appear personally. The Court finds that personal appearance was properly excused pursuant to Probate Code § 1825(a)(4) on the ground that attendance would be detrimental to the proposed conservatee's health, as certified by the attending physician of record, Dr. Priya Ramaswamy, MD, Rivergate Regional Trauma Center, in a Physician's Declaration filed October 31, 2025.

Melissa T. Aoyagi, Esq., of the Los Angeles County Superior Court Probate Volunteer Panel (PVP), previously appointed by this Court on October 30, 2025 as court-appointed counsel for the proposed conservatee under Probate Code § 1471, appeared on her behalf. The Court Investigator's Report of Elena Marchetti, dated November 6, 2025, has been filed and considered.

FINDINGS OF THE COURT

1 Having reviewed the Petition for Appointment of Temporary Conservator filed October 28, 2025; the
2 supporting Physician's Declaration of Dr. Priya Ramaswamy dated October 30, 2025; the Confidential
3 Supplemental Information (Judicial Council Form GC-312); the Duties of Conservator (Form GC-348); the
4 Court Investigator's Report; the Report of PVP Counsel; and having heard the testimony of the petitioner
5 and the argument of counsel, and good cause appearing:

6 **THE COURT FINDS:**

- 7 1. Notice of the hearing on the Petition was given as required by Probate Code §§ 1511, 2250(e), and
8 2250.2, including notice to the proposed conservatee personally, to her spouse (none of record), and
9 to all relatives within the second degree, or good cause for dispensing with such notice has been
10 shown.
- 11 2. The proposed conservatee, **Yolanda Reyes**, date of birth June 22, 1991, resides at 612 Poplar Street,
12 Rivergate, California 91766. She is presently a patient at Rivergate Regional Trauma Center, 2100
13 Medical Center Drive, Rivergate, California 91766.
- 14 3. The proposed conservatee is **incapacitated** and is unable to provide for her personal needs for physical
15 health, food, clothing, or shelter, and is unable to make informed decisions regarding her own
16 medical treatment, as a result of severe **traumatic brain injury** sustained on October 18, 2025, when
17 she was struck as a pedestrian by a transit bus in the City of Rivergate, Los Angeles County,
18 California.
- 19 4. The medical evidence, including the sworn declaration of Dr. Priya Ramaswamy, MD, establishes that
20 the proposed conservatee presently remains in a minimally responsive state with diffuse axonal
21 injury, bifrontal contusions, and elevated intracranial pressure; that she is nonverbal; that she is
22 dependent upon medical staff for all activities of daily living; and that she cannot presently
23 understand the nature and consequences of medical treatment decisions being proposed for her,
24 including proposed neurosurgical interventions.
- 25 5. There is an emergent need for the appointment of a temporary conservator of the person to authorize
26 continuing medical care, to consent to or withhold consent for specific medical procedures, to
27 communicate with treating physicians, to make placement decisions concerning transfer from acute
28 care to rehabilitative care, and otherwise to provide for the personal needs of the proposed

conservatee, pending hearing on the general petition.

6. The petitioner, **Marisela Reyes**, is the natural sister of the proposed conservatee, is over the age of eighteen, is a resident of the State of California, is not disqualified under Probate Code § 2311, and is suitable and willing to serve as temporary conservator of the person.
7. The appointment of the petitioner is in the best interests of the proposed conservatee. No less restrictive alternative to conservatorship has been shown to be available or effective under the present circumstances. There is no advance health care directive, durable power of attorney for health care, or surrogate decision-maker previously designated by the proposed conservatee that is presently available and effective to address the medical decisions required.
8. The Court has considered the recommendations of the Court Investigator and of court-appointed PVP counsel and finds that both concur that appointment of a temporary conservator of the person is necessary at this time.

IT IS ORDERED, ADJUDGED, AND DECREED:

- A. Marisela Reyes** is APPOINTED **temporary conservator** of the person of Yolanda Reyes. The appointment is effective **11/10/2025** and continues in effect until the hearing on the general petition, or until the earlier order of this Court, but in no event beyond thirty (30) days from the date hereof unless extended for good cause pursuant to Probate Code § 2257.
- B.** Letters of Temporary Conservatorship of the Person shall issue to Marisela Reyes upon (i) her execution and filing of the Acknowledgment of Receipt of Handbook for Conservators and (ii) her taking and subscribing the official oath (Prob. Code § 2300).
- C.** The **temporary conservator** shall have all powers and duties conferred by Probate Code §§ 2350 through 2358 with respect to the person of the conservatee, including, without limitation, the powers to:
 - (1) Fix the residence and place of care of the conservatee, subject to Probate Code § 2352 and the limitations set forth in Paragraph E below;
 - (2) Give informed consent to routine and non-emergency medical treatment of the conservatee under Probate Code § 2355, based on the conservatee's known wishes to the extent

ascertainable, and otherwise in the conservatee's best interest;

(3) Access medical records and communicate with health care providers pursuant to 45 C.F.R. § 164.502(g) and Probate Code § 2357; and

(4) Take such other actions as are necessary to provide for the personal care, comfort, and health of the conservatee.

D. Bond. The temporary conservator is required to file a bond in the sum of **Fifteen Thousand Dollars (\$15,000.00)**, this appointment being of the person only and involving no direct control over the estate of the conservatee, but reflecting anticipated reimbursement of personal-need expenditures. Bond shall be filed with the Clerk of this Court prior to issuance of Letters. A corporate surety authorized to transact business in the State of California shall execute the bond.

E. Limitations. The temporary conservator SHALL NOT, without further order of this Court on noticed hearing:

(1) Remove the conservatee from the State of California;

(2) Change the conservatee's residence from her personal residence at 612 Poplar Street, Rivergate, California, to any placement other than a licensed acute-care hospital, licensed skilled-nursing facility, licensed intermediate-care facility, or licensed rehabilitation facility appropriate to her medical condition;

(3) Consent to the administration of psychotropic medication for the treatment of a diagnosed mental disorder, to convulsive treatment, to psychosurgery, or to sterilization; or

(4) Consent to the withholding or withdrawal of life-sustaining treatment absent compliance with Probate Code § 2355 and further order of this Court.

F. The temporary conservator shall serve without compensation except as may hereafter be authorized by this Court on noticed application.

G. The Court sets the following further hearings:

(1) Hearing on the general Petition for Appointment of Conservator of the Person: **December 8, 2025**, at 8:30 a.m. in Department 9.

(2) The Court Investigator shall conduct such further review as is required by Probate Code §§ 1826 and 2250.6 and shall file a supplemental report not less than five (5) court days before

1 the general hearing.

2 **H.** Court-appointed counsel Melissa T. Aoyagi, Esq., shall continue in her appointment through the
3 general hearing and shall be compensated in accordance with Local Rule 4.126 upon submission of a
4 fee application.

5 **I.** This Order shall be served upon the proposed conservatee, upon petitioner, upon court-appointed
6 counsel, upon Rivergate Regional Trauma Center Medical Records Department, and upon such other
7 persons and entities as required by law, within five (5) days of entry.

8
9 Dated: November 10, 2025

10
11 /s/ Beatrice N. Halloway

12 **HON. BEATRICE N. HALLOWAY**

13 Judge of the Superior Court

14 Department 9 — Probate

15
16
17 **CERTIFICATE OF CLERK**

18 I certify that the foregoing is a true and correct copy of the original order entered in the above-entitled
19 proceeding on 11/10/2025 and now on file in this office.

20 DAVID W. SLAYTON, Executive Officer / Clerk of the Superior Court

21
22 By: /s/ R. Castellanos, Deputy Clerk

23
24 *[SEAL OF THE SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES]*

1 **EXHIBIT A — PETITION SUMMARY**

2 *(Attached to and incorporated in the Order of 11/10/2025)*

3
4 **SUMMARY OF PETITION FOR APPOINTMENT OF**
5 **TEMPORARY CONSERVATOR OF THE PERSON**

6 Filed October 28, 2025 by Marisela Reyes

7
8 **Case No.:** 25STPB09876

9 **Proposed Conservatee:** Yolanda Reyes, age 34 (DOB 06/22/1991)

10 **Petitioner:** Marisela Reyes, age 39, natural sister of the proposed conservatee; resident of Rivergate, Los
11 Angeles County, California

12 **Relationship:** Full biological sister; petitioner is elder sibling; both sisters have resided within Los
13 Angeles County continuously for the past twelve years

14 **Nature of Petition:** Appointment of Temporary Conservator of the Person only; no conservatorship of the
15 estate sought at this stage

16 **Relief Requested:** Immediate appointment of petitioner as **temporary conservator** of the person, with
17 authority to make medical and placement decisions on behalf of Yolanda Reyes pending general
18 hearing

19 **Grounds Alleged in Petition:**

- 20 1. On October 18, 2025, at approximately 2:05 a.m., the proposed conservatee was struck by an Alder
21 Creek Transit District bus while standing as a pedestrian at a designated bus stop at South Main Street
22 and Third Avenue in downtown Rivergate. She was airlifted to Rivergate Regional Trauma Center.
- 23 2. Yolanda Reyes sustained a severe **traumatic brain injury**, consisting of diffuse axonal injury, bifrontal
24 cortical contusions, subdural hematoma with midline shift, and multiple orthopedic injuries. She
25 underwent emergency decompressive craniectomy on the date of admission and remains hospitalized
26 in the neurological intensive care unit at Rivergate Regional Trauma Center as of the filing date.
- 27
28

- 1 3. As a direct and proximate result of the injuries described, Yolanda Reyes is **incapacitated**. She is
2 presently nonverbal, minimally responsive, unable to follow multi-step commands consistently, and
3 unable to comprehend or communicate about her medical treatment, personal needs, or living
4 arrangements. She is dependent upon hospital staff and mechanical ventilation support intermittently.
- 5 4. Treating physicians have advised the family that several time-sensitive medical decisions are required
6 within the coming days and weeks, including decisions regarding cranioplasty scheduling,
7 tracheostomy management, feeding-tube placement, and transfer to an inpatient rehabilitation facility
8 upon medical clearance. No person presently holds legal authority to consent on Yolanda Reyes's
9 behalf.
- 10 5. Yolanda Reyes is unmarried, has no registered domestic partner, and has no adult children. She did not
11 execute an Advance Health Care Directive or Durable Power of Attorney for Health Care prior to the
12 injury. Diligent inquiry with her employer (Coastline Home Goods, Inc.), her primary care physician,
13 and BlueShield of California (HMO) has confirmed the absence of any such instrument on file.
- 14 6. The petitioner, Marisela Reyes, has visited daily and has been the primary point of contact for the
15 trauma care team since the date of admission. She is familiar with the proposed conservatee's known
16 values, religious observances (none formally practiced), and prior expressed wishes concerning
17 medical intervention as best they may be reconstructed. She is not disqualified under Probate Code §
18 2311 and has no criminal history disclosed on Judicial Council Form GC-314.
- 19 7. There are no other blood relatives within the first or second degree residing in California who have
20 sought or expressed intent to seek appointment. The petitioner's declaration attaches the
21 acknowledgments of the proposed conservatee's parents (Alma Reyes and the late Hector Reyes,
22 deceased 2019) — specifically the acknowledgment and non-objection of Alma Reyes filed
23 concurrently with the petition — and the acknowledgment of the proposed conservatee's brother,
24 Rafael Reyes, of Long Beach, California, likewise not objecting.

25 **Documents Filed in Support:**

- 26 • Petition for Appointment of Probate Conservator (Judicial Council Form GC-310) — Person only
27 • Confidential Supplemental Information (Form GC-312)
28

- Confidential Conservator Screening Form (Form GC-314) — Marisela Reyes
- Duties of Conservator (Form GC-348)
- Ex Parte Petition for Appointment of Temporary Conservator
- Declaration of Priya Ramaswamy, MD, in Support of Petition (medical grounds and personal-appearance waiver), dated 10/30/2025
- Declaration of Marisela Reyes in Support of Petition
- Notice of Hearing on Petition (Form GC-020) with Proofs of Service
- Proposed Order Appointing Temporary Conservator (Form GC-140)
- Proposed Letters of Temporary Conservatorship (Form GC-150)

Positions of Interested Parties:

- **Alma Reyes (mother of proposed conservatee):** No objection; consents to appointment of petitioner.
- **Rafael Reyes (brother of proposed conservatee):** No objection; consents to appointment of petitioner.
- **Rivergate Regional Trauma Center (via risk management office):** No position; requests only that a duly authorized medical decision-maker be identified so that continuing consent to treatment may be obtained.
- **Court Investigator (Elena Marchetti):** Recommends granting the temporary petition; concurs that the proposed conservatee is **incapacitated** and cannot presently provide for her personal needs or make medical decisions.
- **PVP Counsel for the Proposed Conservatee (Melissa T. Aoyagi, Esq.):** Does not oppose temporary appointment; reserves position on general petition pending further evaluation.

Bond Recommended: \$15,000 (person only; nominal reserve for personal-need reimbursement)

Duration Requested: Effective through the hearing on the general petition, or thirty (30) days from grant, whichever is earlier, subject to extension for good cause under Probate Code § 2257.

End of Exhibit A.